Form L. & S.—B. 1]

Issued as a Renewal of ~~[or in Exchange for]~~ Lease
registered in Vol. 399 *fol.* 15
L. & S. Ref. No. GP.21

NEW ZEALAND

Renewable Lease of Farm Land under the Land Act 1948.

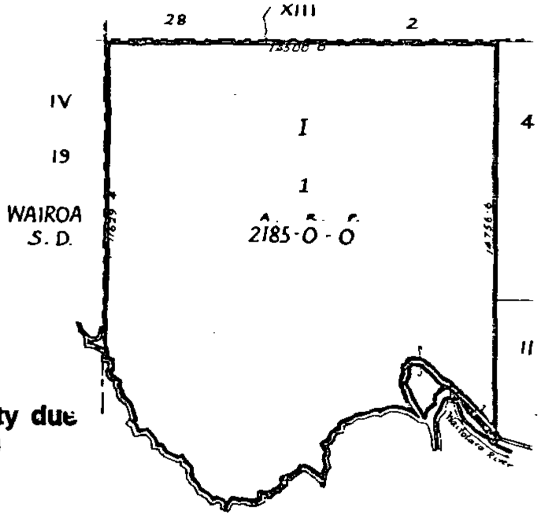
Entered in the Register-book, Vol. 641 *fol.* 87
the 1st *day of* February
1955, *at* 10am *o'clock.*

Assistant *Land Registrar.*

This Deed, made the first day of March 1954, between HER MAJESTY THE QUEEN (who, with her heirs and successors, is hereinafter referred to as "the Lessor"), of the one part, and JOHN KEITH BELTON of NGUTUWERA, in the Dominion of New Zealand, Farmer (who, with his executors, administrators, and permitted assigns, is hereinafter referred to as "the Lessee"), of the other part, WITNESSETH that, in consideration of the rent hereinafter reserved, and of the covenants, conditions, and agreements herein contained or implied and on the part of the Lessee to be paid, observed, and performed, the Lessor doth hereby demise and lease unto the Lessee ALL that piece of land containing by admeasurement 2185 acres more or less, situated in the Land District of Wellington, and being

Section 1, Block I, Nukumaru S.D.

(hereinafter referred to as "the said land"), as the same is more particularly delineated in the plan drawn hereon and therein coloured red in outline; together with the rights, easements, and appurtenances thereto belonging. TO HOLD the said premises intended to be hereby demised unto the Lessee for the term of thirty-three years, commencing on the first day of July one thousand nine hundred and fifty-four, together with the period between the date of this lease and the aforesaid first day of July 1954 Yielding and paying therefor during the said term unto the Department of Lands and Survey at the Principal Land Office for the said Land District the clear annual rent of £14. 8. -. calculated on a rental value of £320. 0. 0. payable without demand by equal half-yearly payments in advance on the 1st day of January and the 1st day of July in each and every year during the said term. And ~~also paying in respect of the improvements specified in the Schedule hereto the sum of by a deposit of (the receipt of which sum is hereby acknowledged) and thereafter by half-yearly instalments of pounds shillings and pence on the 1st day of January and 1st day of July in each year in accordance with Table set out in the Second Schedule to the Land Act Regulations 1949, save that the rebate allowable shall be one-tenth of the interest portion of the instalment due.~~



Block I, Nukumaru S.D.
Scale: 40 chains to an inch
J.J.P.
S.O.15455

Image Quality due to Condition of Original

AND the Lessee doth hereby covenant with the Lessor as follows:—

1. THAT the Lessee will fully and punctually pay the rent hereinbefore reserved at the times and in the manner hereinbefore named in that behalf; and also will pay and discharge all rates, taxes, assessments, and outgoings whatsoever that now are or hereafter may be assessed, levied, or payable in respect of the said land or any part or parts thereof during the said term.

2. THAT the Lessee will within one year after the date of this lease take up his residence on the said land, and thereafter throughout the term of the lease will reside continuously on the said land.

3. THAT the Lessee will hold and use the said land *bona fide* for his own use and benefit and will not transfer, assign, sublet, mortgage, charge, or part with possession of the said land or any part thereof without the previous approval of the Land Settlement Board: Provided that such approval will not be necessary in the case of a mortgage to the Crown or to a Department of State.

4. THAT the Lessee will at all times farm the said land diligently and in a husbandlike manner according to the rules of good husbandry and will not in any way commit waste.

5. THAT the Lessee will throughout the term of his lease to the satisfaction of the Commissioner of Crown Lands for the said Land District (hereinafter referred to as "the Commissioner") cut and trim all live fences and hedges, clear and keep clear the said land of all noxious weeds, and will comply strictly with the provisions of the Noxious Weeds Act 1950.

6. THAT the Lessee will keep the said land free from wild animals, rabbits, and other vermin, and generally comply with the provisions of the Rabbit Nuisance Act 1928.

7. THAT the Lessee will clean and clear from weeds and keep open all creeks, drains, ditches, and watercourses upon the said land, including any drains or ditches which may be constructed by the Commissioner after the commencement of the term of the lease: and will not at any time without the prior consent of the Commissioner alter the channel of any such drain ditch creek or watercourse or stop or divert the water flowing therein.

J.K.B. 8. THAT the Lessee will at all times during the said term repair and maintain and keep in good substantial repair, order, and condition all improvements belonging to the Crown ~~(including those specified in the Schedule hereto which are being purchased by the Lessee)~~ now or hereafter erected on the said land, and will not, without the prior written consent of the Commissioner, pull down or remove them or any part of them.

9. THAT the Lessee will insure all buildings belonging to the Crown ~~(including those specified in the Schedule hereto which are being purchased by the Lessee)~~ now or hereafter erected on the said land to their full insurable value in the name of the Commissioner in some insurance office approved by the Commissioner and will pay all premiums falling due under every such insurance policy and deposit with the Commissioner every such policy and, not later than the forenoon of the day on which any such premium becomes payable, the receipt for that premium.

10. THAT the Lessee will not throughout the term of the lease without the prior consent of the Commissioner, which consent may be given on such terms and conditions (including the payment of royalty) as the Commissioner thinks fit, fell, sell, or remove any timber, tree, or bush growing, standing, or lying on the said land, and that he will throughout the term of the lease prevent the destruction of any such timber, tree, or bush unless the Commissioner otherwise approves: Provided that the consent of the Commissioner as aforesaid shall not be necessary where any such timber or tree is required for any agricultural, pastoral, household, roadmaking or building purposes on the said land nor where the timber or tree has been planted by the Lessee.

11. Should the said land be supplied with water in pursuance of section 50 of the Land Act 1948, then the Lessee will fully and punctually pay all levies in respect thereof and will observe and perform all the conditions and obligations of the said section and the regulations made thereunder, and should the Lessee acquire the freehold of the said land he will execute a covenant in a form approved by the Land Settlement Board binding him to pay such levies and perform all the said conditions and obligations and further binding him if and when he shall thereafter sell the said land to obtain from the purchaser a like covenant.

J.K.B. 12. ~~THAT the Lessee will effect the following improvements on the said land within the times specified in that behalf and will thereafter maintain the said improvements in good order, repair, and condition to the satisfaction of the Land Settlement Board:—~~

AND it is hereby agreed and declared by and between the Lessor and the Lessee:—

(*a*) THAT the Lessee shall have no right, title, or claim whatsoever to any minerals (within the meaning of the Land Act 1948) on or under the surface of the soil of the said land, and all such minerals are reserved to Her Majesty together with a free right of way over the said land in favour of the Commissioner or of any person authorized by him and of all persons lawfully engaged in the working, extraction, or removal of any mineral on or under the surface of the said land or any adjacent land of the Crown, subject to the payment to the Lessee of compensation for all damage done to improvements on the said land belonging to the Lessee in the working, extraction, or removal of any such minerals: Provided that there shall be no right of way over, or right to work, extract, or remove any mineral from, any part of the said land which is for the time being under crop or used or situated within 100 feet of a yard, garden, orchard, vineyard, nursery or plantation, or within 100 feet of any dwellinghouse: Provided also that the Lessee may, with the prior consent in writing of the Commissioner, which consent may be given subject to such conditions as the Commissioner thinks fit, use any such minerals for any agricultural, pastoral, household, roadmaking or building purpose on the said land, but not otherwise.

EQUIVALENT METRIC
AREA IS 894.2381 ha.

CONTINUED

(*b*) THAT upon the expiration by effluxion of time of the term hereby granted and thereafter at the expiration of each succeeding term to be granted to the Lessee the outgoing Lessee shall have a right to obtain, in accordance with the provisions of section 63 (4) of the Land Act 1948, a new lease of the land hereby leased at a rent to be determined in the manner prescribed by Part VIII of the said Act for a term of thirty-three years computed from the expiration of the term hereby granted and subject to the same covenants and provisions as this lease, including this present provision for the renewal thereof and all provisions ancillary or in relation thereto.

J.K.B. (*c*) THAT ~~at any time during the term hereby granted or of any succeeding term to be granted to the Lessee,~~ the Lessee shall have ~~the~~ no right of acquiring the fee-simple of the said land ~~in the manner prescribed by section 122 of the Land Act 1948~~.

(*d*) THAT if the Lessee shall leave New Zealand or abandon the said land or if he cannot be found or if he shall neglect or fail or refuse to comply with the covenants and conditions herein expressed or implied to the satisfaction of the Land Settlement Board or the Commissioner, as the case may be, or make default for not less than two months in the payment of any rent, water levy, or other payments due to the Lessor, then the Land Settlement Board may, subject to the provisions of section 146 of the Land Act 1948, declare this lease to be forfeited, and that without discharging or releasing the Lessee from liability for rent or other moneys due or accruing due or for any prior breach of any covenant or conditions of the lease.

J.K.B. (*e*) THAT these presents are intended to take effect as a renewable lease under Section 67(2) of ~~the~~ Land Act 1948, and the provisions of the said Act and of the regulations made thereunder applicable to such leases shall be binding in all respects upon the parties hereto in the same manner as if such provisions had been fully set out herein.

~~SCHEDULE OF IMPROVEMENTS BELONGING TO THE CROWN AND BEING PURCHASED BY THE LESSEE~~

In witness whereof the said Commissioner of Crown Lands, on behalf of the Lessor, has hereunto set his hand, and these presents have also been executed by the said Lessee.

Signed by the said Commissioner, on behalf of the Lessor, in the presence of—
Witness: Erich M. King
Occupation: Land Clerk
Address: Wellington

D. K. Webb
Commissioner of Crown Lands.

Signed by the above-named Lessee, in the presence of—
Witness: W J Daylen
Occupation:
Address:

POSTMASTER
23 JAN 1955

J. K. Belton
Lessee.

L. & S. B.—1]

THIS REPRODUCTION (ON A REDUCED SCALE) CERTIFIED TO BE A TRUE COPY OF THE ORIGINAL REGISTER FOR THE PURPOSES OF SECTION 215A LAND TRANSFER ACT 1952.
A.L.R.

938217.1 Cancelled and Renewable Lease CT 33A/358 issued for the within land - 4.8.1988 at 11.30am
A.L.R.

~~No. 284229.2 Evidence that the correct name of the registered proprietor is Bryan Edward Belton - 10.8.1979 at 9.47 a.m.~~
error
A.L.R.

Mortgage 284229.3 to The Rural Banking and Finance Corporation of New Zealand- 10.8.1979 at 9.47 a.m.
A.L.R.

CANCELLED

DUPLICATE DESTROYED

Mortgage 337316.1 to The Rural Banking and Finance Corporation - 17.[illegible] at 11.17 a.m.
A.L.R.

639004.1 DISCHARGED 9/8/[illegible]
A.L.R.

390594.1 Variation of the terms of Mortgage 284229.3 - 23.4.1981 at 11.59 a.m
REJECTED
REJECTED
A.L.R.

6/4/87

No. 392488.1 Variation of the terms of mortgage 284229.3 - 15.5.1981 at 2.45 p.m.
A.L.R.

No. 451138.1 Variation of the terms of mortgage 337316.1 - 13.10.1981 at 2.13 p.m.
A.L.R.

LAND & DEEDS
Nature: Lease
Firm: B. P. Kh.
1 FEB 1955
Time: 10
Fees £ — 1/5/—
Abstract No. 255